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Subject: Applications by Metronet Holdings, LLC and MetroNet Systems Holdings, LLC; FCC File Nos. ITC-ASG-20240808-00133; ITC-T/C-20240808-00130; ITC-T/C-20240808-00131; ITC-T/C-20240808-00132 and WC Docket No. 24-244 (TT 24-044 to -048)

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that Metronet Holdings, LLC (“Metronet Holdings”) and its subsidiaries¹ (collectively, the “Licensees”); and MetroNet Systems Holdings, LLC (“MetroNet Systems”); KKR Metro Parent LLC; and T-Mobile US, Inc. (“T-Mobile”) (together with the Licensees, the “Companies”) make to the Committee for the Assessment of Foreign Participation in the United States Telecommunications Services Sector (the “Committee”), the U.S. Department of Justice (“USDOJ”)², and the U.S. Department of Homeland Security (“DHS”) (collectively, the “Compliance Monitoring Agencies” or “CMAs”) to address national security and law

¹ Metronet Holding’s direct and indirect subsidiaries include Climax Telephone LLC; Jaguar Communications, LLC; Vexus Fiber, LLC; CMN-RUS, LLC; and Metronet Fibernet, LLC; and should be read to include any additional subsidiaries with domestic and/or international Section 214 authority or that provide telecommunications services in the United States.

² USDOJ includes the Federal Bureau of Investigation (“FBI”).

enforcement risks arising from the above-referenced applications to the Federal Communications Commission (“FCC”).

In these applications, Metronet Holdings and MetroNet Systems are requesting FCC consent pursuant to Section 214 of the Communications Act of 1934, as Amended, and Sections 63.04 and 63.24 of the FCC’s rules (1) to assign and transfer control of the international Section 214 authority held by Metronet Holdings to MetroNet Systems and (2) to transfer control of the international and domestic Section 214 authorizations of the Licensees to MetroNet Systems.

The Companies certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to the Committee, USDOJ, DHS, the U.S. Department of Defense (“DOD”), and the FCC in the course of the review of the above-referenced applications that was conducted pursuant to Executive Order 13913,³ and they hereby adopt those statements as the basis for this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (“IT”) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).
 - d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC applications. If the FCC releases public notices granting the FCC applications on multiple dates, the latest such date will be the “Date of FCC Approval.”
 - f. “Domestic Communications” (“DC”) means:

³ 85 Fed. Reg. 19643 (Apr. 8, 2020).

- (i) Wire Communications or Electronic Communications (whether stored or not), as defined by 18 U.S.C. § 2510, from one location within the United States, including its territories, to another location within the United States; or
- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any Licensee system that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, the Licensees to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which the Licensees have a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network Access. For the avoidance of doubt, DCI includes “Principal Equipment,” as defined in Paragraph 1(r) below.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4), and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States or its territories.

j. “Foreign Person with Access” means any non-U.S. citizen (including management, owners, employees, contractors, Service Provider employees, Principal Equipment provider employees, other third-party employees, or any other natural person) who has Access to: (1) U.S. Records; (2) DCI (to include, but not be limited to, Principal Equipment, network management system(s), logging/auditing systems, fault management systems, and network interfaces that allow read or write Access to the management, production, and/or operational networks); (3) physical facilities under the Licensees’ control; (4) Lawful U.S. Process; or (5) DC. For the avoidance of doubt, this category includes the subcategory of “Foreign Persons with Privileged Access.”

k. “Foreign Person with Privileged Access” means any Foreign Person with Access to the following: (1) Sensitive U.S. Records, to include: Sensitive Personal Data, social security numbers, financial account data (*e.g.*, bank account numbers, credit card numbers), place of birth, health data, biometric data, and geolocation data; (2) DCI, if the Access is read/write Access; (3) Lawful U.S. Process; or (4) DC.

l. “Geolocation Data” means any information the Licensees collect from their customers regarding a customer’s location or the customer’s device location.

m. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau, or political subdivision, and any court, tribunal, or judicial or arbitral body.

n. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

o. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates, or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

p. “Managed Service Provider” (“MSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or

- (ii) provision of DC or operation of DCI, including customer support; OSS; BSS; Network Operations Centers (as defined below); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and data center services and operations.

q. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

r. “Personally Identifiable Information” (“PII”) means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

s. “Principal Equipment” or “PE” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

u. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records, DCI, U.S. Lawful Process, or DC;
- (iii) Any unauthorized Access to, or disclosure of, any information relating to services provided by the Licensees, or referring or relating in any way to the Licensees’ customers in the United States or its territories;
- (iv) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (v) Any one or more of the following which affect the Companies’ computer network(s) or associated information systems involved in Licensees’ U.S. services:

- A. Unauthorized disruptions to a service or denial of a service;
- B. Unauthorized processing or storage of data;
- C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
- D. Unplanned incidents that cause activation of the Licensees' cybersecurity incident response plan(s);
- E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the Companies' ability to comply with the terms of this LOA; or
- F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. "Sensitive Personal Data" means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. "Service Provider" means any entity (to include but not be limited to any parents, subsidiaries, and affiliates of the Companies, as well as contractors, subcontractors, or Government agencies) that provides any service that could result in the entity having Access to DCI, DC, Lawful U.S. Process, PE, or U.S. Records. Such services include but are not limited to: MSP services; NOC services; network maintenance management or monitoring services; billing or customer support services; network security services; assistance in fulfilling the obligations of this LOA; and providing, installing, operating, updating, repairing, managing, monitoring, or maintaining PE.

x. "Subscriber Information" means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

y. "U.S. Records" means, as related to the Licensees' U.S. services, customer billing records; Subscriber Information; PII; Sensitive Personal Data; CDRs; IPDRs; CPNI; Geolocation Data; the existence, contents, responses to, and results of Lawful U.S. Process, including the Lawful U.S. Process demands themselves; and any other information used, processed, or maintained in the ordinary course of business related to the services that the Licensees offer within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures

set forth in 18 U.S.C. §§ 2703(c)-(d) and 18 U.S.C. § 2709. For the avoidance of doubt, “U.S. Records” includes information related to the customers accessing Licensees’ networks, regardless of whether those customers receive services under the Metronet brand, the T-Mobile brand, or other brands.

Law Enforcement Point of Contact

2. The Licensees agree to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by the CMAs. The LEPOC shall be a U.S. citizen residing in the United States or its territories, unless the CMAs otherwise agree in writing. The LEPOC must be approved by the CMAs to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. The Licensees agree to provide the proposed LEPOC’s PII to the CMAs, in a format the CMAs will identify, along with the proposed LEPOC’s curriculum vitae or similar professional synopsis within **15 days** of the Date of FCC Approval. Upon the CMAs’ request, the Licensees agree to make the proposed LEPOC available for an interview with the CMAs. The CMAs agree to object or non-object within **15 days** of receiving the LEPOC’s PII or the last of any additional requested information.

4. The Licensees agree to notify CMAs in writing at least **30 days** prior to a change in their LEPOC for CMA objection or non-objection. For those cases involving the unexpected firing, resignation, incapacitation, or death of the LEPOC, written notice will be provided within **five (5) days** of such event and the Licensees agree to nominate a replacement LEPOC within **30 days** of such notification. Under these circumstances, the CMAs will object or non-object to the replacement LEPOC within **30 days** of notification. Any new LEPOC will be subject to the CMAs’ review and non-objection pursuant to this Paragraph.

5. The Licensees agree that their designated LEPOC will have Access to all U.S. Records, DCI, or DC necessary to facilitate responses to Lawful U.S. Process and will handle Lawful U.S. Process and Requests for Information consistent with the Lawful U.S. Process and Requests for Information provision of this LOA.

Security Officer

6. The Licensees agree to designate and maintain a security officer (“Security Officer”) who is a U.S. citizen residing in the United States or its territories, unless the CMAs otherwise agree in writing. The Licensees may also designate and maintain an alternate security officer (“Alternate Security Officer”) to fulfill the responsibilities of the Security Officer in the event of the Security Officer’s unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible for a “Secret”-level or higher U.S. Government security clearance. The Security Officer will be responsible for implementing the terms of the LOA, ensuring company employees are appropriately trained in LOA compliance, and acting as a liaison to the CMAs regarding compliance with the LOA and to address any national security or

law enforcement issues arising during the Licensees' due course of business. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority, skills, resources, and access to business information within the Licensees to perform their duties under this LOA.

7. The Security Officer will be available **24 hours** per day, **7 days** per week, to respond to and address any national security or law enforcement concerns that the CMAs may raise with respect to the Licensees or their operations, except that if the Licensees designate an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon the CMAs' request, the Security Officer or, as applicable, the Alternate Security Officer, will be available in person within the United States or its territories, or if the Licensees request and the CMAs agree, by video conference, within **72 hours**, at a date and location, including in a classified setting or by video conference, as deemed necessary by the CMAs.

8. The Licensees agree to timely nominate their Security Officer and any Alternate Security Officer. Specifically:

- a. The Licensees agree to nominate a proposed candidate for Security Officer to the CMAs within **15 days** of the Date of FCC Approval. The CMAs agree to object or non-object within **30 days** of receiving the Security Officer's PII or the last of any additional requested information. If the CMAs non-object to the nominee, the Licensees will appoint the Security Officer within **three (3) days** following the CMAs' non-objection. If the CMAs object to the Security Officer nominee, the Licensees will nominate a different candidate within **30 days** following receipt of such objection.
- b. The Licensees agree to notify the CMAs in writing at least **30 days** prior to any proposed change to their Security Officer for the CMAs' objection or non-objection. For those cases involving the unexpected firing, resignation, incapacitation, or death of the Security Officer, written notice will be provided within **five (5) days** of such event. Under these circumstances, the Licensees agree to nominate a replacement Security Officer within **30 days** of such notification. Any new Security Officer will be subject to the CMAs' review and non-objection pursuant to this Paragraph. For avoidance of doubt, the Licensees shall not remove the Security Officer for any reason arising from the Security Officer's attempts to comply with or ensure the Licensees' compliance with this LOA.
- c. In the event that the Licensees decide to designate an Alternate Security Officer, the Licensees will nominate any proposed candidate for Alternate Security Officer at least **30 days** prior to the date on which the Licensees propose to designate that individual to act as the Alternate Security Officer. The CMAs will object or non-object to the Alternate Security Officer within **30 days** of notification.

- d. The Licensees further agree to not maintain a vacancy or suspension of the Security Officer position for a period of more than **60 days**.
- e. For each nomination for a Security Officer (or Alternate Security Officer), the Licensees will provide the proposed nominee's PII to the CMAs, in a format the CMAs will identify, along with the nominee's curriculum vitae or similar professional synopsis. The Licensees further agree to include with the Security Officer nomination a plan for how the proposed Security Officer will ensure the Licensees' employees are appropriately trained in compliance with this LOA. Upon the CMAs' request, the Licensees agree to make the proposed Security Officer (or Alternate Security Officer) available for an interview with the CMAs. The Licensees agree to address concerns raised by the CMAs regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Personnel Screening

9. The Licensees agree to implement, either directly or through an approved vendor, a process to screen existing and newly hired personnel who have Access to DC, DCI, Lawful U.S. Process, or U.S. Records, as related to the Licensees' U.S. services (*e.g.*, Licensees' personnel, PE vendor personnel, Service Provider personnel, etc.). The personnel screening process will be reflected in a written policy ("Screening Policy") and shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. Upon satisfactory completion of the requirements set forth in the Screening Policy, such persons will be considered "Screened Personnel." The Licensees further agree to provide the CMAs with their Screening Policies no later than **60 days** after the Date of FCC Approval. The CMAs will object or non-object to the Screening Policies within **60 days** of receipt.

10. The Screening Policy will include a plan to re-screen previously Screened Personnel in compliance with the Screening Policy at least every **seven (7) years**.

11. The Licensees agree to provide information to the CMAs regarding all Foreign Persons with Access (including, but not limited to, Foreign employees, Foreign employees of affiliates, and Foreign employees of Service Providers).⁴ With respect to any Foreign Persons with Access as of the Date of FCC Approval, the Licensees will provide the following within **30 days** of the Date of FCC Approval, in a format the CMAs will identify:

- a. The number of Foreign Persons with Access and a description of all categories of Access, as provided in Paragraphs 1(j) and 1(k) of this LOA, including a specific identification of the numbers of Foreign Persons with Access that qualify as Foreign Persons with Privileged Access;
- b. All countries from which the Foreign Persons with Access have Access; and

⁴ See the Service Provider Section for additional details regarding Service Provider employees with Access.

- c. The citizenship(s) of the Foreign Persons with Access.

Following the initial submission of information about Foreign Persons with Access, the Licensees will provide updated information as described above annually, as part of the Annual Report, and otherwise within **14 days** of the CMAs' request.

12. If there are any Foreign Persons with Privileged Access as of the Date of FCC Approval, the Licensees agree to provide PII and additional information about the Access for such persons, in a format the CMAs will identify, within **30 days** of the Date of FCC Approval. The CMAs will object or non-object to any Foreign Persons with Privileged Access within **30 days** of receiving the information.

13. The Licensees agree to submit (in a format CMAs will identify) the PII and additional information about the Access for new Foreign Persons with Privileged Access no less than **30 days** prior to the date by which the Licensees seek to grant such Access. The Licensees further agree to provide PII and additional information about the Access (in a format the CMAs will identify) for Foreign Persons with Access who do not qualify as Foreign Persons with Privileged Access, if the CMAs request it. The CMAs will object or non-object to Foreign Persons with Privileged Access and Foreign Persons with Access for whom PII is provided within **30 days** of receiving notice.

Lawful U.S. Process and Requests for Information

14. The Licensees agree to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. The Licensees further agree to certify to the CMAs the Licensees' compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-10, and its implementing regulations, within **30 days** from the Date of FCC Approval.

15. The Licensees agree to provide notice of any material modification to their lawful intercept capabilities to the CMAs within **30 days** of such modification and will re-certify its compliance with CALEA no more than **60 days** following its notice to the CMAs of any material new facilities, services, or capabilities.

16. Upon receipt of any Lawful U.S. Process, the Licensees agree to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process. The Licensees agree that its designated LEPOC will have Access to all U.S. Records, DCI, or DC necessary to facilitate responses to request for Lawful U.S. Process.

17. The Licensees agree not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign Government-controlled entity, or Foreign entity without prior consent of the CMAs or a court of competent jurisdiction in the United States. Further, the Licensees agree not to allow any Foreign Person Privileged Access without complying with Paragraphs 12 and 13 of this LOA, including

receiving the non-objection of the CMAs, or the consent of a court of competent jurisdiction in the United States.

18. The Licensees agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign Government-controlled entity, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of the CMAs, or a court of competent jurisdiction in the United States.

19. The Licensees agree to refer any requests for information described in Paragraphs 17 or 18 from a Foreign person, Foreign Government, or a Foreign Government-controlled entity, including any legal process from a Foreign Government, to the CMAs as soon as possible, but in no event later than **five (5) days** after such a request, or legal process, is received by, or made known to, the Licensees, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

20. The Licensees agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Security Measures and Plans

21. The Licensees agree to take all appropriate measures to prevent unauthorized Access to or unlawful use of U.S. Records, DC, DCI, and Lawful U.S. Process and to prevent the unauthorized disclosure of information relating to U.S. Records, DC, DCI, and Lawful U.S. Process.

22. T-Mobile agrees to take all appropriate measures to prevent unauthorized Access to or unlawful use of U.S. Records and Lawful U.S. Process and to prevent the unauthorized disclosure of information relating to U.S. Records and Lawful U.S. Process.

23. Within **60 days** of the Date of FCC Approval, the Licensees agree to provide copies of the (1) Cybersecurity Plan; and (2) Systems Security Plan (“SSP”) (together the “Plans”) for their corporate, management, and production networks to the CMAs for objection or non-objection. The Licensees agree to update the Plans for consistency with the current version of the National Institute of Standards and Technology (“NIST”) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, Cybersecurity and Infrastructure Security Agency’s (“CISA”) Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals), and any guidance issued by the FCC. The Licensees agree that their Plans will include, among other things, a detailed plan and timeline to meet any of the NIST, CISA, or FCC standards they have not yet implemented; policies relating to their corporate, management, and production network security; encryption; asset and configuration management; information security; supply chain security; peering and routing security; security incident response and recovery; employee screening and insider threat; Access management; vulnerability identification, mitigation, disclosure, and reporting; remote Access; physical security; cybersecurity; PE and Service Provider screening and Access;

maintenance and retention of system logs; network segmentation; and protection of Lawful U.S. Process, U.S. Records, DCI, and DC. The Licensees will also detail their plans regarding new contracts or amendments to existing contracts with Service Providers and Principal Equipment vendors requiring them to agree to the conditions set forth in the Service Provider and Principal Equipment provisions of this LOA.

24. The Licensees agree that they will update the Plans when appropriate to conform with evolving information security standards, or otherwise make additional modifications to these Plans, if requested by the CMAs, and work with the CMAs to implement such modifications. Following the initial submission of the Plans within **60 days** of the Date of FCC Approval, the Licensees agree to provide updated copies of the Plans annually in accordance with Paragraph 45(m) of this LOA, or otherwise upon the CMAs' request.

25. The Licensees further agree to take timely and appropriate remedial measures, as recommended by CISA, an Information Sharing and Analysis Center ("ISAC"), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

U.S. Records and DC Storage

26. The Licensees agree to notify the CMAs at least **30 days** prior to changing the location for storage of U.S. Records or DC (including backups) to a location that has not previously received a non-objection from the CMAs. The CMAs will object or non-object within **30 days** of receipt of the Licensees' submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is the Licensees);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Countries from which U.S. Records, Lawful U.S. Process, DC, and DCI are Accessed

27. Within **30 days** of the Date of FCC Approval, the Licensees will provide a list of countries from which U.S. Records, Lawful U.S. Process, DC, and the DCI are Accessed (by any natural person or entity, including but not limited to personnel of the Companies and Service Provider personnel). The CMAs will object or non-object within **30 days** of receiving such notice. The Licensees will notify the CMAs **30 days** in advance of permitting any Access to U.S. Records, Lawful U.S. Process, DC, and the DCI from a new country from which Access was not previously approved. The CMAs will object or non-object within **30 days** of receiving such notice.

Reporting Incidents and Breaches

28. The Companies agree to report to the CMAs promptly, and in any event no later than **72 hours**, after they learn of information that indicates a known or suspected Security Incident.

29. The Licensees agree to require any Service Provider to disclose to the Licensees any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within **72 hours** of the Service Provider discovering the breach or loss. The Licensees further agree to require any Service Provider to disclose to the Licensees, within **72 hours** of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to the Licensees that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the Service Provider supply chain.

30. The Companies agree to notify the CMAs, including the points of contact (“POCs”) listed in this LOA, in writing of any Security Incident or breach described in this LOA. For the avoidance of doubt, only one entity need report a Security Incident. Such notification shall take place no later than **72 hours** after the Companies have knowledge, or are informed by a Service Provider, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations. The Companies will share with the CMAs the results of any internal or third-party investigation or review of the incident, if any, including, but not limited to, any steps taken to mitigate the damage and prevent further Security Incidents or breaches.

31. The Licensees agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within **seven (7) business days** after reasonable determination that a person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through the Licensees’ network or that of a third party used by the Licensees, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.

Principal Equipment

32. The Licensees agree to provide the CMAs a complete Principal Equipment list within **30 days** of the Date of FCC Approval. The CMAs will object or non-object to the Principal Equipment within **60 days** of receipt.

33. The Licensees agree to notify the CMAs in writing at least **30 days** prior to introducing any new Principal Equipment of a different make than the Principal Equipment that has received non-objection pursuant to Paragraph 32. The Licensees also agree to notify the CMAs in writing at least **30 days** prior to modifying any Principal Equipment that has received non-objection pursuant to Paragraph 32. The CMAs will object or non-object to such new Principal Equipment or modification to Principal Equipment notices within **30 days** of receipt.

34. The initial Principal Equipment list submitted pursuant to Paragraph 32 and any subsequent notices submitted pursuant to Paragraph 33 shall include the following information, in a format that the CMAs will identify:

a. PE Manufacturer Information:

- (i) Name;
- (ii) Business Address;
- (iii) Internal Revenue Service Employer Identification Number (“EIN”), if available; and
- (iv) Webpage Address URL, if available.

b. Equipment Information:

- (i) Make;
- (ii) Model/Version Number;
- (iii) Function;
- (iv) Country where located;
- (v) Owner (if rented).

c. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);

d. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software from a provider listed on the FCC’s Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department’s Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*; and

35. The Licensees agree to provide the CMAs with updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within **60 days** from the Date of FCC Approval.

Service Providers

36. The Licensees agree to provide the CMAs with a list of Service Providers within **30 days** of the Date of FCC Approval. The CMAs will object or non-object to the Service Providers within **60 days** of receipt.

37. The Licensees agree to notify the CMAs in writing at least **30 days** prior to the use of any new Service Provider. The CMAs will object or non-object to any new Service Provider within **30 days** of receiving notice.

38. The Licensees agree to notify the CMAs in writing at least **30 days** prior to changing the service offerings or support from a previously-identified Service Provider (*i.e.*, where a previously-identified Service Provider or vendor will be offering support in a previously unidentified way). The CMAs will object or non-object to the proposed change in service offerings or support within **30 days** of receiving notice.

39. The initial Service Provider list submitted pursuant to Paragraph 36 and any subsequent notices submitted pursuant to Paragraph 37 shall include the following information for each Service Provider, in a format the CMAs will identify:

- a. Company Name;
- b. Business Address;
- c. EIN, if available;
- d. Webpage Address URL, if available;
- e. Country of Incorporation;
- f. Principal Place of Business;
- g. Description of Service Provided;
- h. Information and/or Systems Access (*e.g.*, DCI, DC, Lawful U.S. Process, or U.S. Records);
- i. Type of Access (Read or Read/Write);
- j. The number of Service Provider Foreign Persons with Access to DCI, DC, Lawful U.S. Process, or U.S. Records and each country from which they have or will have Access, and PII for any Foreign Persons with Access that qualify as Foreign Persons with Privileged Access that have not already received non-objection pursuant to this LOA;
- k. Any foreign government ownership, control, or affiliations; and
- l. Confirmation that the Service Provider is contractually required, or information detailing a timeline for the adoption of the contractual requirements for the Service Provider, to do the following:
 - (i) Screen Employees with Access (pursuant to Paragraph 9 of this LOA);
 - (ii) Report Security Incidents to the Licensees (pursuant to Paragraph 28 of this LOA);
 - (iii) Inform the Licensees of the countries from which Service Provider personnel have Access, and inform the Licensees more than **30 days** in advance of a change in the countries from which Service Provider personnel will have Access;
 - (iv) Ensure that Service Provider Foreign Persons with Privileged Access are reported to the CMAs pursuant to Paragraph 13 of this LOA; and
 - (v) Conform to the Licensees' security policies regarding Service Provider Access.

Upon the CMAs' request, the Licensees will provide additional information about the Service Provider.

Network Operations Centers

40. The Licensees agree to notify the CMAs in writing at least **60 days** prior to changing the location or operator(s) of the NOCs supporting the Licensees' U.S. services. The CMAs will object or non-object to any new NOC location or operator within **60 days** of receiving notice of the proposed change. The Licensees will provide the address, owner (even if one of the Licensees), Principal Equipment, and MSP(s) (as well as any new Service Providers) of the new NOC(s) with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

41. The Companies agree to provide the CMAs notice of any changes to the Licensees' or MetroNet System's businesses, including but not limited to corporate structure changes, ownership changes,⁵ corporate name changes, business model changes,⁶ corporate headquarter location changes, or business operation location changes no less than **30 days** in advance of such change.

42. The Companies agree to provide the CMAs notice within **30 days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the Companies' debts.

43. The Licensees agree to provide the CMAs notice of any material change to their current portfolio of service offerings, including offering other services beyond their current service offerings, no less than **30 days** in advance of such change. The CMAs will object or non-object within **30 days** of receiving such notice.

Instruction of Obligations

44. The Licensees agree to instruct appropriate officers, employees, contractors, and agents as to the Licensees' obligations under this LOA, including the individuals' duty to report any violation, and to issue periodic reminders of such obligations. The Licensees agree to issue

⁵ For the purposes of this paragraph, "ownership changes" means any of the following: (1) a change in the composition of MetroNet Systems' board of directors (*e.g.*, a change in the number of board seats or a change to the number of seats each entity appoints); or (2) any new investment by, or change in existing rights of, any non-U.S. individual or non-U.S. entity holding five percent or greater equity interest in the Licensees that results in such entity obtaining a right to: (a) manage or control the activities of the Licensees or MetroNet Systems; (b) appoint one or more members to MetroNet Systems' board of directors, or an additional non-voting board observer if the entity has an existing right to appoint a non-voting board observer; (c) exercise voting interests in the Licensees or MetroNet Systems; or (d) gain Access to the Licensees' DC, DCI, U.S. Lawful Process, or U.S. Records. In addition, with respect to any calendar month during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest in the Licensees of five percent or more, the Licensees shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in the Licensees no later than the end of the following calendar month.

⁶ For the purposes of this paragraph, "business model changes," does not include the Licensees' anticipated transition to a majority wholesale business model but does include if T-Mobile becomes the network operator for any of the customers accessing the Licensees' network.

initial instructions in writing and provide appropriate live or virtual training within **60 days** of the Date of FCC Approval, and the Licensees agree to submit a copy of such instructions to the CMAs at the same time. The Licensees agree to update these instructions in writing, as needed, and provide appropriate live or virtual training on an annual basis thereafter.

Annual Report

45. The Companies agree to provide an annual report to the CMAs regarding their compliance with this LOA, to include:

- a. If the Companies submitted no notifications to the CMAs pursuant to this LOA during the preceding year, a certification that there were no developments that the Companies were required to report under the LOA during the year;
- b. A description of the Licensees' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein, including compliance with CALEA and other U.S. lawful interception statutes, regulations, and requirements) as related to the Licensees' services;
- c. Copies of the portions of T-Mobile's Annual Report to the Committee on Foreign Investment in the United States ("CFIUS") under its Amended and Restated National Security Agreement ("NSA") that relate to T-Mobile's handling of U.S. Records and Lawful U.S. Process;
- d. A current report of Foreign Persons with Access and Foreign Persons with Privileged Access as described in Paragraphs 11 through 13 of this LOA;
- e. A list of all countries from which U.S. Records, DC, Lawful U.S. Process, and the DCI were Accessed in the prior year;
- f. A current Principal Equipment list containing the information described in Paragraph 34;
- g. A current Service Provider list containing the information described in Paragraph 39;
- h. Notice if the Licensees have used in the past year, or plans to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in its DCI, PE, or other systems supporting DC, Lawful U.S. Process, DCI, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- i. Notice if the Licensees have used in the past year, or plans to use in the future, products or services from an entity listed on the FCC's Covered List (*see* FCC,

List of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>),⁷ the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S.C. § 1321 *et seq.*;

- j. A description of any LOA compliance trainings conducted in the prior year;
- k. A list of relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- l. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- m. Updated SSP and Cybersecurity Plans and a description of any changes to the Plans during the reporting period;
- n. An updated organizational chart showing all owners with a five percent or greater ownership share in the Licensees;
- o. A list of any Security Incidents during the prior year, including any failures to comply with the LOA discovered during the preparation of the Annual Report;⁸
- p. A re-identification of any location(s) in which U.S. Records or DC are stored and a description of the types of U.S. Records and DC collected and stored;
- q. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer(s), if applicable;
- r. A list of all filings or notices to the FCC in the prior year, excluding pro forma notices, and a copy of these filings if requested by the CMAs; and
- s. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. The Companies agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that the CMAs identify to the Companies in the future:

⁷ See also Section 2(a) of the Secure and Trusted Communications Networks Act of 2019, Pub. L. No. 116-124, 133 Stat. 158 (2020) (codified as amended at 47 U.S.C. §§ 1601-09); 47 C.F.R. § 1.50000 *et seq.*

⁸ In addition to noting a compliance violation in the Annual Report, the Licensees must also separately submit a Security Incident report as required in the Security Incident Section. If the violation was failure to submit Principal Equipment, a Service Provider, or a Foreign Person with Privileged Access, the missing submissions should be made with the Incident Report not in the Annual Report.

- Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov), and any other contacts as designated by DOJ; and
- Dustin Dwyer, DHS (at compliance@hq.dhs.gov), and any other contacts as designated by DHS.

Upon the CMAs' request, the Companies agree to provide the CMAs with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

46. The Companies agree to permit the CMAs' requests for site visits and information, approve all requests to conduct on-site interviews of the Companies' employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA or to identify grounds for modification of this LOA.

Third-Party Compliance Audit

47. At their sole discretion, but no more frequently than once every calendar year unless the original audit is found by the CMAs to have been unsatisfactory, the CMAs may request the Companies undergo a neutral third-party compliance audit of LOA compliance (including any plan, policy, or procedure approved under this LOA). In connection with the audit:

- Within **60 days** of the CMAs requesting a third-party audit, the Companies will nominate a third-party auditor, subject to CMAs' non-objection. The Companies shall provide sufficient information for the CMAs to assess the candidate for the third-party audit, to include the following: (i) a description of qualifications and credentials; (ii) any current or prior contractual, fiduciary, or financial relationship with the Companies, or any known affiliate(s) thereof; and (iii) any other information that the CMAs request in order to evaluate the qualifications and competency of a third-party auditor candidate. Within **60 days** of the nomination, the CMAs will object or non-object to the nominated third-party auditor candidate ("Third-Party Auditor").
- The Companies will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Provision. The CMAs will consider avoidance of unreasonable costs as a factor when exercising their rights under this Provision.
- The Companies will ensure the Third-Party Auditor submits, within **15 days** of the CMAs' non-objection to the auditor and prior to commencing the audit, a detailed methodology, proposed scope of audit, and timeline of the Third-Party Audit (the "Audit Plan") which will be subject to CMAs' non-objection. The Audit Plan shall ensure the following:

- (i) The direct communication between the CMAs and the Third-Party Auditor without notice or participation of the Companies, and that the Third-Party Auditor reports directly to the Companies and the CMAs;
 - (ii) In performing its duties under the agreement governing the Third-Party Audit (“Audit Agreement”), the Third-Party Auditor shall prioritize the national security of the United States in the event of any real or perceived conflict or inconsistency with any other interests; and
 - (iii) In performing functions related to the LOA, the Third-Party Auditor shall adhere to the Audit Plan and incorporate and abide by any additional guidance and protocols provided by the CMAs.
- d. The Companies will ensure that the executed engagement agreement with the Third-Party Auditor is provided to the CMAs within **seven (7) days** of execution.
- e. The Companies will ensure that their agreement with the Third-Party Auditor will require the Third-Party Auditor to deliver promptly to the CMAs and the Companies the full audit report (“Audit Report”) and related information generated or gathered during its review that relate directly to the Companies’ compliance with the terms of this LOA and will agree to meet independently with the CMAs upon request. Such meeting will occur via video conference whenever possible. Unless otherwise agreed to by the CMAs, the Compliance Audit report shall be submitted to the CMAs by the auditor at the same time it is submitted to the Companies. The Companies shall work in good faith with the CMAs regarding how to remediate any concern identified in the Audit Report.

General Provisions

48. The Licensees and T-Mobile may make submissions jointly or separately to the CMAs with respect to those provisions where both parties are named.

49. T-Mobile acknowledges that the requirements of its NSA with CFIUS will apply to, among other things, any records and data T-Mobile receives from the Licensees and T-Mobile’s handling of Lawful U.S. Process requests related to such records or data. T-Mobile further acknowledges that the Committee may take action to address risks to U.S. national security or law enforcement interests resulting from T-Mobile’s failure to comply with the relevant portions of the NSA, including, consistent with the requirements of E.O. 13913, recommending to the FCC that the FCC modify the relevant licenses to condition them on modified mitigation measures, or revoke the licenses due to the risk to U.S. national security or law enforcement interests.

50. The Companies agree that this LOA is binding upon, and inures to the benefit of, the Companies and their respective successors and assigns. For purposes of this LOA, successors and assigns includes any corporate name changes. The Companies may not assign any obligation under this LOA without the prior written consent of the CMAs.

51. The Companies agree that the Committee, at its sole discretion, may make non-substantive administrative updates to the LOA to add, modify, or remove the CMAs monitoring this LOA.

52. With the Companies' permission, the Committee may make non-substantive administrative updates to the LOA, to account for changes in 1) corporate ownership, mergers and acquisitions, structure, names, and license numbers; and 2) Committee structure.

53. If the CMAs find that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the Companies agree to resolve the CMAs' concerns, according deference to the CMAs' views on the need for modification. If new or additional national security or law enforcement risks develop with respect to PE, storage and Access locations, Service Providers, the Plans, or Foreign Persons with Access that have received the CMAs' prior non-objection under this LOA, the Companies similarly agree to resolve the CMAs' concerns. Action to resolve the CMAs' concerns could include, but is not limited to, the removal and replacement of PE with other PE to which the CMAs non-object, or the modification or termination of existing agreements the Licensees have with Service Providers. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Licensees or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

54. The Companies agree that in the event that the Companies breach the commitments set forth in this LOA, to include conduct contrary to timely CMA objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Licensees or its successors-in-interest, in addition to pursuing any other remedy available by law or equity.

55. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

56. Any non-objection, consent, or approval provision applicable to the CMAs pursuant to this LOA shall be tolled during a lapse in appropriations or any time when the Federal Government in the greater Washington, D.C. area is closed.

57. The Companies agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

58. The Companies understand that if CMAs find the national security and law enforcement risks associated with these applications and petition have decreased such that they no longer warrant mitigation, the CMAs may terminate this LOA by notice to the FCC. Such termination will require the non-objection of the Committee, including all Committee Members.

The Companies further understand that even after such a termination, under Section 6 of Executive Order 13913, the Committee may conduct a license review for additional or new risks to U.S. national security and law enforcement interests at any time. Termination of a mitigation agreement does not relieve the Companies from liability for any breach of this LOA occurring while it was in effect.

59. The Companies understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the applications.

For the Licensees

Dave Heimbach

[Dave Heimbach \(May 9, 2025 12:53 EDT\)](#)

Dave Heimbach, President and Chief Executive Officer
Metronet Holdings, LLC
Climax Telephone LLC
Jaguar Communications, LLC
Vexus Fiber, LLC
CMN-RUS, LLC
Metronet Fibernet, LLC
Date: May 9, 2025

For MetroNet Systems

Dave Heimbach

[Dave Heimbach \(May 9, 2025 12:53 EDT\)](#)

Dave Heimbach, President and Chief Executive Officer
Metronet Systems Holdings, LLC
Date: May 9, 2025

For KKR Metro Parent LLC

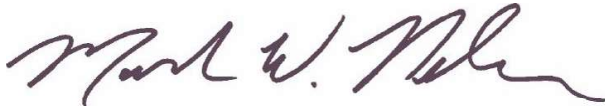
Signed by:

6E6C44EC66534A4

Felix Boyeaux, Manager and Vice President
KKR Mercury Parent LLC¹
May 9, 2025

¹ This entity is currently named KKR Mercury Parent LLC, but its name will change to KKR Metro Parent LLC upon closing of the Transaction.

For T-Mobile

A handwritten signature in dark ink, appearing to read "Mark W. Nelson", written over a horizontal line.

Mark W. Nelson, Executive Vice President & General Counsel
T-Mobile US, Inc.

May 9, 2025